

In *Pulliam*, Gladys Pulliam, a magistrate for the county of Culpeper in the Commonwealth of Virginia, set bail for Richmond Allen and Jessie Nicholson, the plaintiffs, for nonjailable offenses which they had committed. As a result, both Allen and Nicholson were incarcerated for failure to make bond, although they were charged with offenses which carried maximum penalties of \$500 and \$100 fines respectively.⁶¹ After disposition of the original cases, Allen and Nicholson sued Magistrate Pulliam pursuant to section 1983. A federal district court judge found that Magistrate Pulliam regularly required bond for nonincarcerable offenses. The judge then held such practice to be unconstitutional on both due process and equal protection grounds and enjoined Magistrate Pulliam from further actions of a similar nature.⁶² The court further directed that "any pretrial detention for persons arrested for Class 3 and Class 4 misdemeanors on the grounds that the person is lawfully deemed likely to be a danger to himself or to others may last only so long as such danger persists. . . ."⁶³

In addition to injunctive relief, the district court awarded the sum of \$7,691.09 to the plaintiffs as costs including a counsel fee of \$7,038.00 pursuant to 42 U.S.C. section 1988. Magistrate Pulliam appealed only with respect to the award of a counsel fee against her. The Court of Appeals for the Fourth Circuit determined that the magistrate was not immune from either the award of counsel fees, nor from prospective injunctive relief.⁶⁴

On certiorari, the Supreme Court addressed the issues of whether injunctive relief might be awarded against a judicial officer and, whether incident to such relief, an award of attorney's fees might be made. The Court answered both questions in the affirmative.⁶⁵

Judges: History and Theory, 31 S.C.L. REV. 201, 214-16 (1980) that only superior court judges were granted such immunity, that Lord Coke in *Floyd and Barker* specifically declared that such immunity would apply to justices of the peace as well as to the judge of assise. 77 Eng. Rep. 1305, 1306-07 (1607). A justice of the peace in England then, as now, is a judicial officer of limited jurisdiction, but is a member of a court of record. It is rare for a judge in the United States now not to be a member of a court of record which is defined as "a court that is required to keep a record of its proceedings and that may fine or imprison." Black's Law Dictionary 319 (5th ed. 1979).

61. 104 S. Ct. at 1972.

62. *Allen v. Burke*, 690 F.2d 376, 377-78 (4th Cir.), *aff'd*, *Pulliam v. Allen*, 104 S. Ct. 1970 (1982).

63. 104 S. Ct. at 1973 n.2.

64. *Allen v. Burke*, 690 F.2d 376, 379 (4th Cir.), *aff'd*, *Pulliam v. Allen*, 104 S. Ct. 1970 (1982).

65. 104 S. Ct. at 1982. The court held that Congress clearly intended attorney's fees to be available under section 1988 for costs incurred in a section 1983 action. *Id.* Although the